

THIRD ADDENDUM TO LEASE AGREEMENT

This Third Addendum To Lease Agreement ("Third Addendum To Lease Agreement") is entered into as of the dates set forth below, but effective for all purposes and in all manners as of May 31, 2010 ("Effective Date") by and between

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Blvd., Lafayette, Louisiana 70506 (the "Lessor")

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 2400 Broadway, Beaumont, Texas 77702 (the "Lessee").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 ("**Original Lease Agreement**") as amended by that certain Addendum to Lease Agreement dated as of June 30, 2010 ("**First Addendum to Lease Agreement**") and that certain Addendum to Lease Agreement dated as of August 10, 2000 ("**Second Addendum to Lease Agreement**") (the Original Lease Agreement, First Addendum to Lease Agreement, and Second Addendum to Lease Agreement are hereinafter collectively referred to as the "**Lease Agreement**");

WHEREAS, the Lease Agreement provides for an initial term of One Hundred Twenty (120) months ("**Initial Term**") which Initial Term is set to expire October 31, 2010;

WHEREAS, the Lease Agreement provides that the Lessee shall have an option to renew ("**Option to Renew**") the lease for an additional term of One Hundred Twenty (120) months;

WHEREAS, the Lessee wishes to exercise the Option to Renew granted in the Lease Agreement and Lessor and the Lessee wish to amend the Lease Agreement to provide for an extension of the Lease Agreement for an additional One Hundred Twenty (120) month period ("**Extension Term**");

WHEREAS, in connection with the Option to Renew and the Extension Term, the Lessee wishes to perform certain construction work within the Premises as set forth in Exhibit "A" to this Third Addendum to Lease Agreement ("**Proposed Construction Work**") and the Lessor wishes to approve and allow Lessee to perform the Proposed Construction Work;

WHEREAS, the Lessee has proposed and the Lessor has agreed that the Lessor will contribute the amount of Twenty Two Thousand Five Hundred and No/100 Dollars (\$22,500.00) in the form of rent abatement in the amount of One Thousand Eight

Hundred Seventy Five and No/100 Dollars per month for a period of Twelve (12) months, during the Extension Term, beginning November 1, 2010 and ending October 31, 2011 ("**Lessor Construction Contribution**") and the Lessor wishes to agree to the proposed Lessor Construction Contribution; and

WHEREAS, the Lessor and the Lessee wish to amend the Lease Agreement with this Third Addendum to Lease Agreement to evidence (i) the Lessee's exercising of the Option to Renew as of the Effective Date; (ii) the approval by the Lessor of the Proposed Construction Work; (iii) the Lessor's Construction Contribution; and (iv) the Base Rent and Additional Rent to be charged during the Extension Term.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. The Lessor and the Lessee do, by execution hereof, agree that the Option to Renew, as defined in the Lease Agreement, is being exercised by the Lessee and accordingly is in full force and effect as of the Effective Date and the Lease Agreement is hereby extended for One Hundred Twenty (120) months beginning November 1, 2010 and expiring October 31, 2020 ("**First Renewal Term**").
2. The Lessor and the Lessee hereby agree that the Lessee will perform the Proposed Construction Work as set forth in Exhibit "A" to this Third Addendum to Lease Agreement. The parties further agree that the Proposed Construction Work will be performed by the Lessee and shall be in conformance with all applicable local, state or federal laws and regulations.
3. The Lessor and the Lessee hereby agree that the Lessor will contribute the amount of Twenty Two Thousand Five Hundred and No/100 Dollars (\$22,500.00) in the form of rent abatement in the amount of One Thousand Eight Hundred Seventy Five and No/100 Dollars per months for a period of Twelve (12) months beginning November 1, 2010 and ending October 31, 2011.
4. During the First Renewal Term, the Total Monthly Rental Payment shall be calculated by using i) a Common Area Maintenance Charge of \$ 1.35 per square foot of the Premises per year, payable monthly, ii) a Taxes and Insurance Charge of \$1.15 per square foot of the Premises per year, payable monthly and iii) Base Rent shall be a sum of \$3,122.40 per month for months One (1) – Twelve (12) of the First Renewal Term, \$4,997.40 per month for months Thirteen (13) - Sixty (60) of the First Renewal Term and \$5,381.80 per month for months Sixty One (61) - One Hundred Twenty (120) of the First Renewal Term.

5. The Total Monthly Rental Payments shall be as follows:

First Renewal Term - Months One (1) - Twelve (12):

Base Rent	\$ 3,122.40
Common Area Maintenance Charges	518.96
Taxes and Insurance Charges	<u>442.08</u>
Total Monthly Rental Payment	<u>\$ 4,083.44</u>

First Renewal Term - Months Thirteen (13) - Sixty (60):

Base Rent	\$ 4,997.40
Common Area Maintenance Charges	518.96
Taxes and Insurance Charges	<u>442.08</u>
Total Monthly Rental Payment	<u>\$ 5,958.45</u>

First Renewal Term - Months Sixty One (61) - One Hundred Twenty (120):

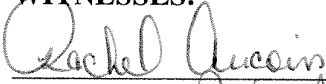
Base Rent	\$ 5,381.80
Common Area Maintenance Charges	518.96
Taxes and Insurance Charges	<u>442.08</u>
Total Monthly Rental Payment	<u>\$ 6,342.87</u>

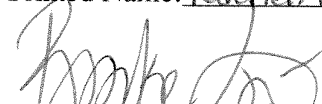
6. All terms and conditions of the Lease Agreement not specifically amended or modified herein shall remain in full force and effect as set forth in the Lease Agreement.
7. Capitalized terms used herein and otherwise defined herein shall have the meanings ascribed to such terms in the Lease Agreement.
8. The Lessor and the Lessee hereby agree that the terms and conditions of this Third Addendum to Lease Agreement shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants on On The Boulevard Shopping Center.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

WITNESSES:

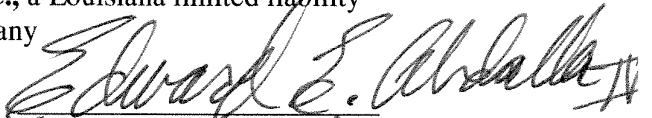

Printed Name: Rachel Aucoin


Printed Name: Brooke Loefer

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By:



Edward E. Abdalla, IV

Manager

Dated:

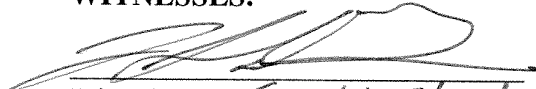
5/24/10


Notary Public

ADAM A. ABDALLA
BAR ROLL NUMBER 30370
NOTARY PUBLIC, STATE OF LOUISIANA
MY COMMISSION EXPIRES AT DEATH

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

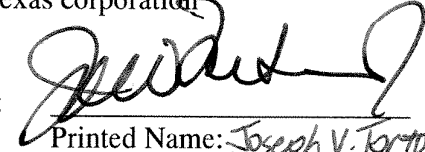
WITNESSES:

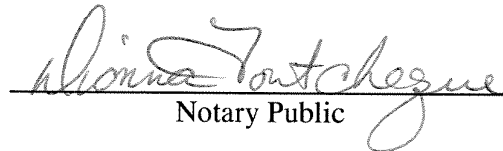

Printed Name: Joseph S. Edwards

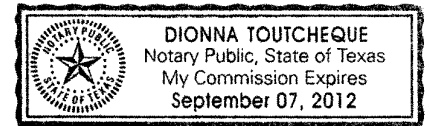

Printed Name: James N. McLaughlin

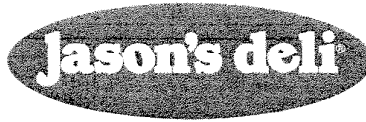
LESSEE:

DELI MANAGEMENT, INC.,
a Texas corporation

By: 
Printed Name: Joseph V. Tortorice, Jr
Printed Title: President
Dated: May 20, 2010


Notary Public





April 8, 2010

Richard L. Becker, info@lawbecker.com
Becker and Associates
910 Harding Street
Lafayette, Louisiana 70503

Re: Jason's Deli located in On the Boulevard Shopping Center, Lafayette, Louisiana

Mr. Becker,

Thank you for the letter dated March 9, 2010. Let me first apologize for not getting back with you sooner regarding the renewal of the above location's lease and the renovations that we (Deli Management, Inc – DMI) would like to have completed. Below you will find the work that DMI would currently like to have completed.

- 1.) Two new roof top HVAC units with new distribution duct work. These units will be of the same or better quality than currently exists. - \$20,000
- 2.) Bathroom remodel to update the décor and provide a cleaner feeling. - \$25,000
- 3.) Cover the current stained concrete dining room floor with new 20" porcelain tile. - \$ 30,000
- 4.) New interior sign package that will include the removal of the black and white pictures, replacement of the menu board signs, new flat screen TVs and fresh paint on all of the walls. - \$15,000

The above improvements will come at a total cost of approximately \$90,000. During our meeting we requested that the Landlord, Mr. Abdalla, contribute \$22,500 towards the cost of these renovations. The costs that have been estimated above are based on the costs of similar work completed in Jason's Deli locations throughout the country. Our goal is always to ensure that first class contractors doing first class work for a reasonable price are used for these remodels and new construction.

Please let me know that Landlord will be agreeable to these terms and how you would like for us to proceed from this point.

Sincerely,

Joseph S. Edwards

Joseph S. Edwards